

July 11, 2025

VIA ELECTRONIC MAIL

Professor Mark James
Department of English
Molloy University
1000 Hempstead Avenue
Rockville Centre, New York 11570

Dear Professor James:

At the request of the current president of the Molloy University chapter of the American Association of University Professors, you have asked the staff in the AAUP's national office to review and provide comment on the university's faculty handbook. We are glad to do so.

Our observations focus, for the most part, on the areas in which existing policies and procedures appear to be inconsistent with Association-supported principles and standards, especially those set forth in the enclosed *Recommended Institutional Regulations on Academic Freedom and Tenure*, which, it is important to emphasize, are designed to be incorporated verbatim in faculty handbooks and other institutional governing documents.

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We are pleased to begin by noting several references in Molloy's faculty handbook to AAUP policy documents, including the joint AAUP-AAC&U 1940 *Statement of Principles on Academic Freedom and Tenure*, which section 4.1 ("Professional and Ethical Relationships") states is "endorsed by Molloy University."

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Section 10.3 ("Guidelines Specific to the Application for Tenure") states in its entirety,

Academic tenure shall mean that the full-time faculty member holds a permanent or continuous appointment in his/her academic position, *to be terminated only for adequate cause, resignation, or any bona fide financial exigency*. Termination for adequate cause shall be made only in accordance with procedures for dismissal outlined in the Faculty Handbook. (Emphasis added)

We note, first, that the AAUP recognizes only the following three bases for terminating an appointment with continuous tenure or a probationary or special appointment before the end of the specified term: (1) adequate cause, (2) financial exigency, and (3) bona fide formal discontinuance of a program or department of instruction.

The standards articulated in Regulation 5 of the *Recommended Institutional Regulations* govern dismissal for cause of a faculty member with continuous tenure or of a faculty member on a probationary or special appointment before the end of the specified term (see Regulation 5b).

While the university's dismissal policy appears to be largely consistent with Regulation 5, it has a fatal flaw, namely, it does not specify which party—the faculty member or the administration—bears the burden of proof in a dismissal hearing.

Because tenured faculty members serve on continuous appointments and are presumed competent, an administration must overcome the presumption of competence by demonstrating adequate cause for their dismissal. That is why Regulation 5c(8) states that the “burden of proof that adequate causes exists rests with the institution and will be satisfied only by clear and convincing evidence in the record considered as a whole.”

The lack of any provision similar to Regulation 5c(8) in Molloy's dismissal policy is our first and most serious concern. **We therefore strongly recommend that you and your colleagues immediately seek to incorporate Regulation 5c(8) in the university's dismissal policy, ideally verbatim.**

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A policy on financial exigency does not appear to exist in Molloy's faculty handbook; indeed, the only mention of financial exigency is in section 10.3, as quoted above. **We therefore recommend that you and your colleagues develop a financial exigency policy, a model for which is set forth in Regulation 4c of the *Recommended Institutional Regulations*.**

Regulation 4c begins by defining a “demonstrably bona fide financial exigency” as “a severe financial crisis that fundamentally compromises the academic integrity of the institution as a whole and that cannot be alleviated by less drastic means” than terminating tenured appointments. Additionally,

- “an elected faculty governance body” will participate “in the decision that a condition of financial exigency exists or is imminent and that all feasible alternatives to termination of appointments have been pursued”;
- the faculty as a whole or a representative body thereof will have “primary responsibility” for “determining where within the overall academic program termination of appointments may occur” and for “determining the criteria for identifying the individuals whose appointments are to be terminated”;
- prior to the making of any proposals on discontinuing programs, “the faculty or an appropriate faculty body will have the opportunity to render an assessment in writing of the institution's financial condition”; and
- those faculty members whose programs are being considered for discontinuance “will promptly be informed of this activity in writing and provided at least thirty days in which to respond to it.”

With respect to the due-process protections available to affected faculty members, Regulation 4c(3) requires affordance of “an on-the-record adjudicative hearing” before an elected faculty body similar in basic respects to what the AAUP recommends for dismissal (see Regulation 5). In such a hearing, an affected faculty member may contest

- “the existence and extent of the condition of financial exigency,” with the burden of proof resting with the administration,
- “the validity of the educational judgments and the criteria for identification for termination,” with the important qualification that “the recommendations of a faculty body will be considered presumptively valid,” and
- “whether the criteria are being properly applied in the individual case.”

Among the final provisions are these three.

- A tenured faculty appointment will not be terminated before an untenured appointment “except in extraordinary circumstances where a serious distortion in the academic program would otherwise result” (Regulation 4c[4]).
- Prior to terminating an appointment for reasons of financial exigency, the institution, with faculty participation, “will make every effort” to find another “suitable position within the institution” for the affected faculty member (Regulation 4c[5]).
- “In all cases of termination of appointment because of financial exigency,” affected faculty members with tenure will be afforded notice or severance salary of “at least one year” (4c[6]).

See also *The Role of the Faculty in Conditions of Financial Exigency*, which elaborates on the provisions of Regulation 4c, and *On Institutional Problems Resulting from Financial Exigency: Some Operating Guidelines*, both of which are enclosed.

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Molloy’s faculty handbook also does not appear to contain a policy governing the formal discontinuance of a program or department of instruction. **We therefore recommend incorporating the detailed provisions of Regulation 4d of the *Recommended Institutional Regulations***, the first of which is that program discontinuance “will be based essentially upon educational considerations, as determined by the faculty as a whole or an appropriate committee thereof.” It is important to note that “educational considerations” do not include “cyclical or temporary variations in enrollment”; they must instead “reflect long-range judgments that the educational mission of the institution as a whole will be enhanced by the discontinuance” of a department or program.

In addition, under Regulation 4d(2), “Faculty members in a program being considered for discontinuance will promptly be informed of this activity in writing and provided at least thirty days in which to respond to it.”

Regulation 4d(3) provides, “Before the administration issues notice of its intention to terminate an appointment” because of program discontinuance, “the institution will make every effort to place the faculty member in another suitable position,” including providing financial and other support for a reasonable period of retraining. This regulation also requires the administration to pay “severance salary equitably adjusted to the faculty member’s length of past and potential service,” which “may well exceed but not be less than” one year of salary for faculty members with indefinite tenure.

Finally, under Regulation 4d(4), affected faculty members have the right to contest any relocation or termination in an adjudicative hearing of record before an elected faculty hearing committee. Contestable issues include the “institution’s failure to satisfy any of the conditions” of Regulation 4d. In such a hearing, the burden of proof rests with the administration on every issue except a faculty determination that a program should be discontinued, which “will be considered presumptively valid.”

* * * *

Section 4.4 (“Reappointment/Non-renewal of Faculty”) of Molloy’s faculty handbook states in part,

Notice of non-renewal of a full-time faculty contract shall be given by the President as follows:

- for those in the first (1st) year of teaching, no later than March 1 of the contract year or at least six (6) months in advance of its termination, whichever comes first.
- for those in the second (2nd) year of teaching, no later than December 15 of the contract year; or, if the contract terminates during the academic year, at least six (6) months in advance of its termination, whichever comes first.
- *for faculty in their third (3rd) or subsequent year of teaching, notice of non-renewal must be provided by the date contracts are issued or, in the case of delayed contracts, no later than the end of the Spring semester prior to the terminal contract's effective date. (Emphasis added)*

When the university determines not to renew a contract of any non-tenured member of the faculty and gives written notice of non-renewal as provided above, the university shall be under no obligation to give a statement of the reasons or otherwise defend such action, except as provided in the Dismissal Policy.

The italicized provision above regarding notice of nonrenewal for a full-time faculty member with two or more years of service is not entirely clear, but it appears to be deficient vis-à-vis Regulation 2c of the *Recommended Institutional Regulations*, which states:

Regardless of the stated term or other provisions of any appointments, written notice that a probationary appointment is not to be renewed will be given to the faculty member in advance of the expiration of the appointment as follows:

- (1) not later than March 1 of the first academic year of service if the appointment expires at the end of that year or, if a one-year appointment terminates during an academic year, at least three months in advance of its termination;
- (2) not later than December 15 of the second academic year of service if the appointment expires at the end of that year or, if an initial two-year appointment terminates during an academic year, at least six months in advance of its termination;
- (3) *at least twelve months before the expiration of an appointment after two or more years of service at the institution.* (Emphasis added)

In addition, that “the university shall be under no obligation to give a statement of the reasons” for a nonrenewal decision is wholly inconsistent with Regulation 2f, which provides for written reasons for a nonrenewal decision upon request.

Finally, the AAUP recognizes three bases upon which a full-time faculty member may appeal a nonrenewal decision: inadequate consideration, allegations of a violation of academic freedom, and allegations of improper discrimination.

Regulation 2g of the *Recommended Institutional Regulations* provides for a faculty member to appeal a nonrenewal decision based on inadequate consideration, which, as the enclosed *Statement on Procedural Standards in the Renewal or Nonrenewal of Faculty Appointments* explains, refers to procedural issues:

The term “adequate consideration” refers essentially to procedural rather than to substantive issues: Was the decision conscientiously arrived at? Was all available evidence bearing on the relevant performance of the candidate sought out and considered? Was there adequate deliberation by the department over the import of the evidence in light of the relevant standards? Were irrelevant and improper standards excluded from consideration? Was the decision a bona fide exercise of professional academic judgment? These are the kinds of questions suggested by the standard “adequate consideration.”

Regulation 10 provides for the appeal of a decision not to reappoint a full-time faculty member based on allegations of a violation of academic freedom. It states:

If a faculty member on probationary or other nontenured appointment alleges that a decision against reappointment was based significantly on considerations that violate (a) academic freedom or (b) governing policies on making appointments without prejudice with respect to race, sex, religion, national origin, age, disability, marital status, or sexual orientation, the allegation will be given preliminary consideration by the [insert name of committee], which will seek to settle the matter by informal methods. The allegation will

be accompanied by a statement that the faculty member agrees to the presentation, for the consideration of the faculty committee, of such reasons and evidence as the institution may allege in support of its decision. If the difficulty is unresolved at this stage and if the committee so recommends, the matter will be heard in the manner set forth in Regulations 5 and 6, except that the faculty member making the complaint is responsible for stating the grounds upon which the allegations are based and the burden of proof will rest upon the faculty member. If the faculty member succeeds in establishing a prima facie case, it is incumbent upon those who made the decision against reappointment to come forward with evidence in support of their decision. Statistical evidence of improper discrimination may be used in establishing a prima facie case.

Regrettably, the Molloy handbook appears to be silent regarding a process by which a full-time faculty member who receives notice of nonrenewal can appeal the decision to a faculty committee.

In the light of the aforementioned deficiencies in the university's nonrenewal policy, we recommend incorporating Regulations 2c, 2f, 2g, and 10 in section 4.4 or another appropriate section of the handbook.¹

* * * *

There appears to be only one mention of sanctions other than dismissal in the handbook: sections 14.4.3 and 14.4.4 refer to "adequate cause for dismissal or other sanction." **You and your colleagues may therefore wish to incorporate (again, verbatim) Regulation 7 of the *Recommended Institutional Regulations in the faculty handbook*.**

Regulation 7a governs severe sanctions other than dismissal:

If the administration believes that the conduct of a faculty member, although not constituting adequate cause for dismissal, is sufficiently grave to justify imposition of a severe sanction, such as suspension from service for a stated period, the administration may institute a proceeding to impose such a severe sanction; the procedures outlined in Regulation 5 will govern such a proceeding.

Regulation 7b governs minor sanctions:

If the administration believes that the conduct of a faculty member justifies imposition of a minor sanction, such as a reprimand, it will notify the faculty member of the basis of the proposed sanction and provide the faculty member with an opportunity to persuade the administration that the proposed sanction should not be imposed. A faculty member

¹ We note that under the provisions set forth in section 16 ("Appeal from Adverse Promotion and Tenure Decisions") of the faculty handbook, which appear to essentially comport with Regulations 2f, 2g, and 10, a faculty member who is denied tenure is entitled to written reasons for the decision upon request and an opportunity to appeal to the faculty grievance committee. Full-time faculty members whose appointments are not renewed prior to the year in which they apply for tenure are entitled, under AAUP-recommended standards, to the same rights.

Professor Mark James

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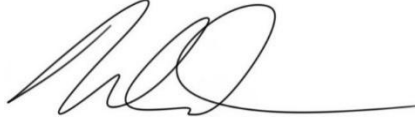
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who believes that a major sanction has been incorrectly imposed under this paragraph, or that a minor sanction has been unjustly imposed, may, pursuant to Regulation 16, petition the faculty grievance committee for such action as may be appropriate.

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We hope these comments are useful to you and your colleagues. We would be glad to answer any questions you may have.

Best regards,

A handwritten signature in black ink, appearing to read 'Michael DeCesare', with a long horizontal flourish extending to the right.

Michael DeCesare

Senior Program Officer

Department of Academic Freedom, Tenure, and Governance

Enclosures by email attachment

cc: Professor Christine Barrow, President, Molloy University AAUP Chapter
Professor Mary Rose Kubal, President, New York AAUP Conference